

SEE ALSO: NEWSLETTER OF MAY 8, 2025

[doc. web n. 10128005]

Provision of March 13, 2025

Register of provisions

n. 135 of March 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia, and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures of external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Report by Attorney Guido Scorza;

PREAMBLE

1. Introduction.

This provision concerns the complaint

submitted by Ms. XX on XX, as subsequently

supplemented on XX, and the report submitted,

during the ongoing investigation already initiated

in response to the aforementioned complaint, on XX by the Department

of Public Function of the Presidency of the Council of Ministers, both concerning the processing, by the Regional Company for Development and Services in Agriculture (hereinafter, also “ARSAC” or “Company”), of data related to the geolocation of personnel working remotely.

1.1. The complaint

In particular, with the aforementioned complaint, the complainant, an employee of the Company, alleged presumed violations regarding the protection of personal data with reference to certain checks carried out by the Company on the days XX and XX, to verify the compatibility of the geographical position from which the complainant was performing her work remotely with what was indicated in the individual agreement regarding remote work signed between her and the Company.

More specifically, from the complaint and the documentation attached to it, it emerges, in particular, that:

- in the context of the aforementioned checks, “the employee was asked, in order to verify the work station for remote work, to perform: a check-in on the TIMERELAX platform both for leaving and returning, the employee checked in at: 09:29 for leaving and 09:30 for returning, subsequently she was asked to send an email regarding the check performed in remote work, to the institutional email address of [employee assigned to carry out the check]” (cf. Company report titled Control Report Remote Work No. XX of XX);
- “from the check performed, the geolocation, even though sometimes the maps used are not entirely updated, was found to be incompatible with what was declared and granted in the remote work contract signed with ARSAC. From the control check, the employee was found to be present in Piazzale [...], while the nearest location, requested in the Remote Work contract, is Via [...] which is approximately 40-50 km from the georeferenced point. The same employee in the control phone call [...] immediately mentioned the incongruity of the position” (cf. Company report titled Control Report Remote Work No. XX of XX);
- “another inconsistency noted, in the monitoring carried out by [employee assigned to carry out the check] on the day XX when the employee is again working remotely, concerns the check-in, performed by the employee via smartphone, which is geolocated [... at ...], which is about 5 km from the nearest location communicated in the contract, Via [...]” (cf. Company report titled Control Report Remote Work No. XX of XX);
- the complainant was charged with a disciplinary offense on the grounds of the alleged “non-compliance with the timing and methods of

the procedures provided for by the regulation regarding the performance of work in remote mode” and the noted “discrepancy between the declared location and the geolocated position.

from the Inspection Office in the performance of the verifications” (see notice of disciplinary charge, dated XX);

- “ARSAC requests employees to report the performance of work activities in agile mode via PC or smartphone [... through the application] Time Relax [... which] requires, at the time of access, to enable the location service [...], and once consent to localization is given, it waits for the GPS signal [...], only to then incorrectly localize the position [...] at the time of clocking in. The described process occurs for both clocking in and clocking out” (see note dated XX);

- “however, no information was provided to the employee regarding the processing of personal data that would be carried out by the employer” (see note dated XX).

1.2. The report from the Department of Public Function of the Presidency of the Council of Ministers With a report dated XX, the Department of Public Function of the Presidency of the Council of Ministers informed the Guarantor through the Inspectorate for Public Function, within the scope of its institutional duties and for the relevant follow-up (see Article 60, paragraph 6, of Legislative Decree No. 165 of March 30, 2001), that it had “become aware of practices that could be in contrast with the regulations on the protection of personal data carried out at the Regional Company for the Development of Calabrian Agriculture (ARSAC).”

In detail, the report indicates that the aforementioned Department of Public Function had “learned that the Procedure Control Unit - Inspectorate of the mentioned Entity would carry out the localization of devices (notebooks and smartphones) used by its employees on the days when they perform their work activities in agile work mode as per Article 18 of Law 81/2017” and that “with a note dated XX [... it had already] requested the extraordinary commissioner of ARSAC to provide detailed and precise elements regarding the lawfulness of the data processing carried out.”

In light of the above, the aforementioned Department of Public Function deemed it necessary to “proceed with the transmission of the documentation received for the evaluations of competence [...] of the Guarantor], requesting to keep [...] the] Inspectorate informed.”

2. The investigative activity.

Within the scope of the investigation, with a note dated XX, ARSAC declared, in particular, that:

“the monitoring of the actual performance of work in agile mode by the head of the Procedure Control Unit is based on criteria agreed upon with management. [...] This] is carried out only on the days and during the time slot granted to the employee (so-called contactability time slot), and with the tools and methods necessary for such verification, including the Time Relax platform according to the provisions contained in the Regulation on agile work [...] adopted by this Entity and the related individual employment contract”;

“in particular, the control of Agile Work is carried out through a direct call to the employee by the head of the Control-Inspectorate organizational unit, always respecting the contactability time slot, inviting the same employee to perform a double clocking using the Time Relax application, one for clocking in and one for clocking out, subject to consent to geolocation; otherwise, remote clocking in would not be possible within the agile work framework; subsequently, the employee subject to control is invited to send an email regarding the subject of the control carried out in agile work to the institutional email address of the Control Unit, so that the same worker can declare the exact location in which they are at the time of the clocking in and out subject to inspection control. In the subsequent phase, the aforementioned head proceeds to reorganize the acquired information, in order to verify the correspondence between the location or locations of work indicated by the worker in the individual agile work contract compared to that declared in the email and resulting in the Time Relax application on the day and at the time subject to inspection control. The results of this control activity are included in the Inspection Visit/Control Report, which, in a sealed envelope, is delivered, via internal protocol to the Entity, to the General Director of A.R.S.A.C.”;

“the [...] complainant] with the cited individual agreement has expressed their consent to the processing of personal data by the Entity aimed at fulfilling the necessary requirements for

participation in the smart working procedure. This is indeed an informed consent also in reference to this specific aspect”;

“the Time Relax application technically presents itself as a geolocation platform solely for the operations of presence detection (clocking), whose use has been ratified upstream through an agreement with the trade union representatives, in full compliance with Article 4 of Law 300/1970 and subsequent amendments, as per the minutes of the meeting of the delegation dated XX [...] in which the “Company Regulation on agile work” was approved [...] including the use of the geolocation function solely and exclusively for the purpose of clocking. [...] The use of the Time Relax platform as a verification system for the performance of agile work has then been included in the section “Agile Work of the PIAO period XX” [...]”;

“the legal basis for the processing of personal data

regarding the geographical location of workers in remote working mode, which legitimizes such processing is constituted, upstream, by the aforementioned trade union agreement of XX as per protocol A.R.S.A.C. no. XX [...] of ratification/approval of the “Company Regulation on Agile Work” (see also the supplementary agreement minutes of XX);

“to this end, the employee, for their own protection, on the days authorized for remote work, is required to register their presence on the “time relax” application, including the request and use of any personal leave [...]. This procedure, as already highlighted and documented, was also followed in relation to the request for remote work submitted by [...] claimant] on XX and reiterated for the year XX, pursuant to the attached individual agreement, from which it clearly emerges how the same [...] claimant] expressed suitable informed consent for the processing of data, including with reference to geolocation”;

“to the [...] claimant], as to any other interested employee, adequate information was provided, pursuant to art. 13 of the Regulation, also considering what is provided for by art. 4, paragraph 3, of Law No. 300 of May 20, 1970”;

“the aforementioned choice falls within the exercise of the employer's powers of organization of work where the performance is carried out by the worker outside the company premises, with the aim of primarily ensuring the protection of the safety and health of the worker in the workplace even in remote working mode, in accordance with the provisions of Law 81/2017 and subsequent amendments, and, at the same time, the protection of data privacy, to which the public employee is subject in light of D.P.R. no. 62/2013 and subsequent amendments and the current A.R.S.A.C. Code of Conduct. In fact, this application does not allow for the storage of geographical coordinates but only allows, at the time of clocking in/out, to detect the location where the worker authorized for remote work is located. It is specified that no other measurements are taken during working hours outside of the aforementioned inspection control, which in any case — it is reiterated — is entirely hypothetical and random, and is carried out through a phone call that precedes the verification clocking. This control, due to its randomness, is entirely comparable to that usually carried out by the inspection service on personnel present”;

“the “Time relax” application necessarily requires, prior to its installation on the computer device chosen by the worker, access protected by “USERNAME AND PASSWORD”, which are communicated by the employee via email during the registration phase in the system. Once logged in, the app presents the worker with a screen displaying the name and surname that has been registered so that the worker is in a position to confirm their identity and informs them of any requests for justifications, requests for clocking, messages, and information on accrued balances. At this point, the worker can decide whether to perform the geolocated clocking. During access to the clocking function, the Time Relax App requests the employee's consent to access their location. Given the consent, only at that point does the app begin the search for the location. Once the location is verified, the worker can decide when to clock in, selecting the direction (start or end of the activity). Only at this point does the App request the smartphone for the geographical coordinates of the location where the worker is located and transmits them to the clocking collection system along with the worker's identification code, the clocking direction, and the date and time of the action. [...]. Within Time Relax, the data is

available to employees who already perform personnel management and administration activities, in addition to the hierarchical superiors of each employee. Specifically, the subjects who have access to the data of remote work are: the Manager, the clocking station, the Company owning the Time Relax platform in its capacity as Data Processor [...] and the head of the inspection service [...].

With a note dated XX, the Office, based on the elements acquired, the checks carried out, and the facts emerged during the investigative activity, notified ARSAC, pursuant to art. 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in art. 58, paragraph 2, of the Regulation. This is because the processing of data relating to the geographical location of the majority of employees in remote work and the subsequent use of the same to initiate disciplinary proceedings against the claimant appeared to have occurred in violation of articles 5, paragraph 1, letters a), b), and c), 6, 13, 25, 35, and 88 of the Regulation and articles 113 and 114 of the Code.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (art. 166, paragraphs 6 and 7, of the Code, as well as art. 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX, ARSAC, expressing the desire to be heard by the Authority pursuant to art. 166, paragraph 6, of the Code and reserving the right to submit further defensive documentation, including the elements referred to in art. 83 of the Regulation, requested by the Authority with the aforementioned XX, represented that “on XX, the “geolocation” function of the “clocking” platform TIMERELAX was deactivated, in self-defense”.

During the hearing, held on XX, ARSAC read the defensive documentation subsequently transmitted with a note dated XX, from which it appears, among other things, that:

- “the disciplinary procedure (currently suspended) regarding the employee [...] began from a random check carried out based on the guidelines of the inspection service of ARSAC, on a percentage equal to 20% of employees working remotely [...]. During the check, the employee mentioned an inconsistency regarding the location of the work activity performed remotely. The location was different from the three indicated in the signed contract”; “the data related to geolocation was not evaluated for the entire procedure since the same employee stated [...] that she was in a place different from those indicated in her remote work contract”;
- “the contract signed by the employee provided for the performance of work in [...] locations [...] that do not correspond to the one where the employee was at the time of the check [...]”; “the employee claims to have performed her work at a ‘bed & breakfast [...], notifying her supervisor of this discrepancy only on the XX”;
- “the prohibition, pursuant to art. 4, Stat. lav., of the use of equipment for the purpose of remote monitoring of workers' activities, was respected by ARSAC, as the geolocation check was aimed at an organizational, productive, and workplace safety need (the employee was located tens of kilometers away from the point communicated in the authorization for remote work) and not for disciplinary purposes, so much so that the disciplinary procedure was activated not due to the viewing of the geolocated position (as the employee claims in the complaint) but because the interested party stated, over the phone, that she was not in the location she had originally communicated, and in any case, this procedure has been suspended and the interested party has not received any sanction”;
- “the processing of personal data [...] in question involved] a limited number of employees (about 100 out of 540)”; “the same geolocation function was deactivated on XX”;
- “the processing of data through virtual clocking in was to include geolocation based on the legal basis of the general administrative act [ARSAC Resolution No. XX of XX] pursuant to art. 2-ter, paragraphs 1 and 1-bis, of Legislative Decree No. 196/2003 and subsequent amendments. [...] as] shared with the then-appointed Internal Data Protection Officer. The use of geolocation [...] allowed the employer to verify that the worker was performing their activity at the appropriate location [...]. However, only the data related to the workplace and that related to entry and exit was retained. The use of the APP Time Relax with geolocation function was activated solely to provide workers with greater guarantees in the context of remote work, in particular, the possibility of taking leave for service (to perform activities also

at other Administrations or Entities such as Courts, Revenue Agencies, Offices of the Junta, etc.) or for personal reasons”; “everything was done with maximum transparency and having entered into a specific agreement with the trade union representatives pursuant to art. 4, Stat. Lav.”;

- the Company “has, however, interrupted the processing subject to the procedure and has undertaken a path to complete compliance with the regulations on personal data protection.”

On date XX, ARSAC lastly provided further elements regarding the facts subject to investigation.

3. The regulation on personal data protection in the workplace.

Regarding the processing of personal data within the employment relationship, it is generally highlighted that the employer may process the personal data of workers, including those relating to special categories of data (cf. art. 9, par. 1, of the Regulation), upon the occurrence of an appropriate legal basis, if the processing is necessary for the management of the employment relationship and to fulfill specific obligations or tasks arising from the sector regulations as well as when the processing is “necessary for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller” (arts. 6, paras. 1, lett. c) and e), 2 and 3; 9, par. 2, lett. b), and 4; 88 of the Regulation; 2-ter of the Code).

In this context, the processing of personal data carried out in the execution of the subordinate employment contract in remote mode - regulated by a discipline aimed at promoting the adoption of work organization methods based on spatial-temporal flexibility, objective evaluation, and the reconciliation of work life with private life (see arts. 18 to 23 of Law No. 81 of May 22, 2017) - is subject to the same legal bases mentioned above that typically apply in the workplace.

The employer must also comply with national regulations, which “include appropriate and specific measures to safeguard human dignity, legitimate interests, and the fundamental rights of the data subjects, particularly regarding the transparency of processing [...] and monitoring systems in the workplace” (arts. 6, par. 2, and 88, par. 2, of the Regulation). In this regard, the Code, confirming the framework prior to the amendments made by Legislative Decree No. 101 of August 10, 2018, expressly refers to national sector provisions that protect the dignity of individuals in the workplace, particularly regarding possible controls by the employer (arts. 113 “Data Collection and Relevance” and 114).

“Guarantees regarding remote control”). As a result of this reference, and taking into account Article 88, paragraph 2, of the Regulation, compliance with Articles 4 and 8 of Law No. 300 of May 20, 1970, and Article 10 of Legislative Decree No. 276/2003 (in cases where the prerequisites are met) constitutes a condition for the lawfulness of processing.

It should also be noted that, even in cases where work is performed in agile mode, “the employer is required to ensure the respect of the worker's personality and moral freedom” pursuant to Article 115 of the Code, which is expressly directed at telework, agile work, and domestic work.

The employer, as the data controller, is in any case required to comply with the principles regarding data protection (Article 5 of the Regulation). The employer is also required to observe the principles of “data protection by design” and “data protection by default,” under which it must implement appropriate technical and organizational measures, “both at the time of determining the means of processing and at the time of the processing itself,” in particular in order to “integrate into the processing the necessary safeguards to meet the requirements of the [Regulation] and protect the rights of the data subjects” as well as “to ensure that only personal data necessary for each specific purpose of processing are processed by default,” also with reference to aspects related to the retention and quantity of data collected (Article 25 of the Regulation).

4. Outcome of the investigative activity.

4.1. The processing of data related to the geographical location of personnel working in agile mode.

From the assessment carried out based on the elements acquired and the facts emerged following the investigative activity, as well as the subsequent evaluations of the Office, it has been established that, due to the adoption of Resolution No. XX of XX and the attached regulation on agile work, which constitutes an integral part thereof, ARSAC has made use - from XX, the month in which Resolution No. XX and the attached regulation were adopted, until XX - of an application (Time Relax) through

which, at the time of clocking in and out by each employee and with their consent to geolocation, it acquired the geographical coordinates of the employee's smartphone or PC that had clocked in, along with their identification code, the date and time of the clocking, specifying whether it was for clocking in or out.

This was done in order to verify that the geographical location from which the personnel were performing their work in agile mode corresponded to one of those indicated within each individual agreement regarding agile work and, consequently, according to what the Company stated, also for the benefit of declared organizational and productive needs, the protection of health and safety of workers, as well as the protection of personal data subject to processing through work tools.

It has been specifically established that the data related to the geolocation of the employee in agile mode was processed:

- a) both, in general, at the time of the daily clocking in and out by the employee, at the beginning and end of the work activity or, in any case, during the use of any permits that the employee availed themselves of within their availability period; in such cases, a verification was carried out each time regarding the correspondence between the data related to the geographical position detected and the employee's workplace as provided for in the agile work agreement;
- b) both, as occurred in the case subject to complaint, within the framework of specific targeted control activities on specific employees carried out in accordance with the internal procedures previously in use at the Company, based on which:
 - i. the employees to be subjected to checks were selected randomly;
 - ii. the employee subjected to control was contacted by telephone by the head of the relevant organizational unit, respecting the availability period, and was invited to perform a double clocking using the Time Relax application, one for clocking in and one for clocking out;
 - iii. immediately after, the employee subjected to control was invited to declare the exact location where they were at the time of the clockings subject to inspection by sending an email to the institutional email address of the aforementioned organizational unit;
 - iv. in the subsequent phase, the aforementioned head proceeded to verify the correspondence between the workplace or workplaces indicated by the employee in the individual agile work contract and what was declared via email and what resulted from the Time Relax application on the day and time when the inspection was carried out;
 - v. the results of this control activity were then included in a report that, in a sealed envelope, was delivered, via internal protocol, to the General Director of the Company.

From the documentation on file, it is evident that the use of the Time Relax application and, in particular, its geolocation function in relation to the clocking activity of employees had been the subject of negotiation between the Company and the...

trade union representatives (see minutes of the XX, with which, in particular, the "Company Regulation for Agile Work" was approved). From the examination of the documents, it also appears that the Company, after subjecting the complainant to a specific control in the manner indicated above under letter b), initiated a disciplinary procedure against her on the basis of the detected "discrepancy between the declared location and the geolocation verified by the Inspection Office during the checks" (cf. notice of disciplinary charge, of the XX). In both cases mentioned above (letters a) and b)), the collection, through the aforementioned application, of the data relating to the employee's location appears to have been carried out in order to verify that the geographical position from which the personnel performs their work in agile mode corresponded to that indicated within each individual agreement regarding agile work. Therefore, it must be considered that the processing in question, "insert[ing]" – as stated by the Company itself – "within the exercise of the employer's powers of work organization" and thus giving rise to a "monitoring of the actual performance of work in agile mode" (cf. note of the XX), was directly aimed at verifying the worker's compliance with the obligations arising from the agreement on agile work concerning the location of the work activity.

In its defense memoranda, the Company specified that such processing also allowed for the pursuit of specific interests related to legitimate employer needs (cf. note of the XX; see also note of the XX).

4.2. The detection of the geographical position of the place of agile work.

National legislation defines agile work as a "mode of execution of the subordinate employment relationship" whereby the work performance takes place, in relation to the specificity of the tasks performed, "in phases, cycles, and objectives, without precise constraints of time and place of work" (see Articles 18 to 23 of Law No. 81 of May 22, 2017). In this context, in fact, work performed in agile mode, unlike the performance of work at the employer's premises, is typically characterized by a flexibility that, save for the possible operation of availability bands, pertains both to the place and the time of the related performance (Article 18, paragraph 1, of Law No. 81 of May 22, 2017).

For the above reasons, any checks on the fulfillment of work performed in agile mode may consist, for example, of the worker drafting periodic reports or summary documents regarding the activities carried out or in moments of discussion on days of presence at the workplace regarding the objectives achieved in relation to those assigned (Directive of the Ministry of Public Education of the XX; but see also the Guidelines containing rules related to the organization of work aimed at promoting the reconciliation of life and work times, contained in the Directive of the Prime Minister's Office No. 3 of 2017).

Even in the case of work performed in agile mode, the use of technological tools by the employer, from which the possibility of remotely monitoring the activities of workers also derives, can occur exclusively for the pursuit of the mandatory purposes provided for by law, namely "[...] for organizational and productive needs, for work safety, and for the protection of the company's assets," in compliance with the procedural guarantees established therein (Article 4, paragraph 1, of Law No. 300 of May 20, 1970). The law on agile work, in fact, expressly refers to the limits, conditions, and guarantee procedures of Article 4 of Law No. 300 of May 20, 1970 (cf. Article 21 of Law No. 81 of May 22, 2017).

In this context, also following the amendments made to Law No. 300 of May 20, 1970, by Article 23 of Legislative Decree No. 151 of September 14, 2015, the different needs for monitoring compliance with the worker's diligence duties – which also fall within the employer's prerogatives if pursued personally by the employer or through their hierarchical organization (Articles 2086 and 2104 of the Civil Code) – cannot, however, be pursued with remote technological tools, which, by mechanically and inelastically reducing the space of freedom and dignity of the person, entail a direct monitoring of the worker's activity not permitted by the current legal system and the constitutional framework. Such purposes are not, in fact, attributable to any of the mandatory purposes selected by the legislator and mentioned above ("organizational and productive," "work safety," and "protection of the company's assets"), since remote monitoring of work activity is permitted by law, in compliance with the guarantee conditions provided therein, only incidentally, that is, in the course of pursuing such legitimate purposes, thus assuming a typically indirect and unintended character. This principle is also confirmed by the jurisprudence of the Court of Cassation (cf. Criminal Cassation, III section, No. 22148/2017, in the part where it recalls the orientation, "fully valid even following the amendment of Legislative Decree No. 151 of September 14, 2015, Article 23," according to which "the equipment aimed solely at the remote monitoring of work performance [must be] absolutely prohibited [...for] conflict with the principles of the Constitution"). This means that the pursuit of the aforementioned purpose of direct control is not permissible in the legal system even in the presence of

an eventual agreement with the unitary trade union representation or with the company trade union representatives, concerns a purpose that falls outside the framework of guarantees outlined by the sector-specific provisions and, more radically, by the internal constitutional structure, as highlighted by the aforementioned case law. It follows that, from the perspective of personal data protection, the related processing is devoid of an adequate legal basis, conflicting with the principle of "lawfulness, fairness, and transparency" and with the specific national provisions of greater protection preserved by the Regulation, in violation of Articles 5, paragraph 1, letter a), and 6, since the aforementioned conduct falls outside the legality framework provided by Article 114 of the Code (see Article 88 of the Regulation).

In confirmation of the above-mentioned principles, it is important to note that, with Circular No. 4/2017, the National Labor Inspectorate, in providing interpretative clarifications regarding Article 4 of Law No.

300 of May 20, 1970, although with reference to other instruments, specified that, in any case, "the installation and use of '... tools from which the possibility of remote control of workers' activities may also derive,' can only be justified for the needs provided for by Article 4 [... and], therefore, only in such cases can 'incidental' control over the worker's activity be legitimized, [...] avoiding prolonged, constant, indiscriminate, and invasive controls," also specifying that "the fundamental 'paradigm' of Article 4 [...] should not be overturned in such a way as to achieve a penetrating control over the performance of workers' duties, in order to ensure adequate and more efficient organizational and productive methods within the company," and concluding, therefore, that, in such cases, the tools used "not only do not fall within the definition of a tool useful for '... rendering the work performance...' but [...] there are also no organizational and productive needs that justify the issuance of the authorization by the Labor Inspectorate" (see, specifically regarding the geolocation of devices assigned to employees, also Circular INL of XX, Prot. No. XX).

In these terms, the Guarantor has also expressed itself through its own measures (see, in particular, measures of December 1, 2022, No. 409, web document No. 9833530; October 28, 2021, No. 384, web document No. 9722661; and November 16, 2017, No. 479, web document No. 7355533; see also, although regarding the different context related to the installation of video devices near attendance detection systems, the opinion of the Guarantor on the draft decree of the President of the Council of Ministers concerning the implementation regulation of the provision of Article 2 of Law No. 56 of June 19, 2019, measure of September 19, 2019, No. 167, specifically point 4.2, web document No. 9147290; see also the measure regarding video surveillance of April 8, 2010, paragraph 4.1, web document No. 1712680, which, although dating back to the previous legal framework regarding data protection, contains indications that can still be considered valid: "in surveillance activities, the prohibition of remote control of work activity must be respected; therefore, the installation of equipment specifically aimed at the aforementioned purpose is prohibited: recordings should not be made to verify compliance with the duties of diligence established for respecting working hours and the correctness in the execution of work performance, e.g., by orienting the camera on the badge").

This orientation is also confirmed within the European and international legal framework (see European Data Protection Board, Guidelines 3/2019 on the processing of personal data through video devices, version 2.0, adopted on January 29, 2020, paragraph 37, where it is indicated that "in most cases, an employee in the workplace does not expect to be monitored by their employer"; see also Article 29 Working Party, Opinion 2/2017 on data processing in the workplace, adopted on June 8, 2017, WP 249; see also the Recommendation of the Council of Europe of April 1, 2015, CM/Rec (2015), paragraph 15.1, where it states that "the introduction and use of information systems and technologies aimed directly and primarily at monitoring the activities and behavior of employees should not be allowed").

It is noted, in this regard, that even the personal data processing that can be lawfully carried out by the employer (i.e., those of an indirect or unintended nature) cannot, in any case, assume a massive and indiscriminate character, but must rather be carried out according to a principle of graduality and progressiveness and, therefore, only after the implementation of less restrictive measures on workers' rights (see Hearing of the Guarantor on the Jobs Act before the Labor Commission of the Chamber of Deputies on July 9, 2015, web document No. 4119045; as well as "Statement by Antonello Soro, President of the Guarantor for Privacy, on the judgment of the Strasbourg Court" - ECHR, judgment of October 17, 2019, López Ribalda and others v. Spain-, web document No. 9164334, "the essential requirement for work controls [...] to be legitimate remains, for the Court, their rigorous proportionality and non-exceedance: cornerstones of data protection regulation whose 'social function' is confirmed, even from this perspective, increasingly central because it is capable of reconciling dignity and economic initiative, freedom and technique, guarantees and duties").

In light of the considerations that precede, it must be clarified that, in general, distance of work activities, such monitoring must still comply with the principles of personal data protection. The intersection of regulations concerning personal data protection and those regarding remote monitoring of work activities, although suitable for ensuring enhanced protection for the

worker—who is a vulnerable party due to the asymmetry in the contractual relationship with the employer—highlights the complementarity between two regulatory frameworks that remain, however, autonomous and distinct from one another. This implies that the employer, as the data controller, must always respect the principles of personal data protection in addition to the applicable sector-specific regulations. The potential existence of an agreement with trade union representatives regarding the use of a specific system that involves the processing of employees' personal data is indeed a necessary condition, but not always sufficient, to ensure the overall legality of the processing and compliance with personal data protection principles.

Nor can the processing in question be deemed lawful on the grounds that, according to the statements made by the Company, the legal basis would be represented by "the general administrative act composed of ARSAC Resolution No. XX of XX, with the attached regulation on 'Agile Work,' which is an integral part of the resolution" (see note of XX). Aside from the correct qualification of the Company's resolution as a general administrative act under the current legal framework, in fact, general administrative acts cannot contravene or modify the higher normative references, having merely an integrative effect on the legal system. As highlighted in recent rulings by the Authority, the hierarchical criterion of legal sources indeed establishes the prevalence of the higher-ranking source over that of lower rank, preventing the latter from derogating from or conflicting with the content of the superior source; therefore, one does not find in the general administrative act the capacity to introduce innovations or modifications in the legal framework concerning the processing of personal data—such as, indeed, the processing of data related to the geolocation of personnel working remotely—since such an act cannot fully encompass the existing regulations, the essential characteristics of which must be and remain outlined by the higher-ranking norms (see, in particular, provision of April 11, 2024, No. 235, web document No. 10019523; see also provisions of July 6, 2023, Nos. 286 and 287, web document No. 9920145; provision of April 13, 2023, No. 125, web document No. 9907846; provision of July 22, 2021, No. 273, web document No. 9683814).

The legal basis for the processing must, in fact, be "suitable" also in light of the structure of the sources of the "constitutional order" of the Member State (see recital 41 of the Regulation and also Constitutional Court ruling No. 271/2005, according to which the regulation on personal data protection falls within the exclusive state competence related to the "civil order") and it must meet specific requirements, both in terms of the quality of the source, necessary contents, and appropriate and specific measures to protect the rights and freedoms of the data subjects, as well as in terms of the proportionality of the regulatory intervention concerning the objectives to be pursued (Article 6, paragraphs 2 and 3, letter b), of the Regulation).

Furthermore, as recently clarified by the Authority also concerning different work contexts, in the system of the Regulation and the Code, differentiated levels of protection for personal data on a territorial basis or between different public and private work contexts or, again, at the level of a single administration, are not permitted, as occurred in the present case, where there was, moreover, a disparity of treatment to the detriment of only those employees who benefit from agile work. This is especially true when, as in the case at hand, the matter has already been subject to balancing and regulation by the legislator with uniform provisions at the national level that protect the dignity and moral personality of the worker regardless of the modalities through which they perform their work, whether in person or remotely, in any work context (Articles 88 of the Regulation, 114 and 115 of the Code, and 18, paragraph 1, and 21 of Law No. 81 of May 22, 2017), also considering that, by the legislator's choice, the performance of agile work occurs "without precise constraints of [...] workplace."

Nor can the circumstance invoked by the Company, that "the App Time Relax requires the employee's consent to access their position" (see note of XX), be deemed relevant, given that, as stated on many occasions by the Authority (see, among many, provision of January 14, 2021, No. 16, web document No. 9542071), the consent of employees does not constitute, in this context, a valid basis for the lawfulness of the processing of personal data, regardless of whether the employer is public or private (recital No. 43; Article 4, point 11), and Article 7, paragraphs 3 and 4, of the Regulation; see the consolidated orientation at the European level, Article 29 Working Party, Opinion 2/2017 on the

processing of data in the workplace, WP 249, pp. 7 and 26, and Guidelines on consent under Regulation EU 2016/679 - WP 259 - of May 4, 2020). This is without prejudice to the obligations provided for by the Code concerning the processing of location data by providers of publicly accessible electronic communication services and providers of public communication networks or third parties providing value-added services (Articles 121, paragraph 1-bis, and 126 of the Code, implementing Directive 2002/58/EC).

Moreover, since the law allows for the monitoring of work activities, such monitoring must still comply with the principles of personal data protection.

distance of the work activity through the use of technological tools by the employer only to a merely incidental and unintended extent, the processing of data aimed at directly monitoring the work activity of individual employees highlights a contradiction with the principle of "purpose limitation" as per Art. 5, par. 1, lett. b), of the Regulation, insofar as it pursues a purpose that is not "legitimate."

In light of the above considerations, it must be deemed that the processing, by ARSAC through the Time Relax application, of data relating to the geographical location of personnel working remotely was carried out from XX - the month in which resolution no. XX and the attached regulation were adopted - to XX, in a manner not compliant with the principles of "lawfulness, fairness, and transparency" and "purpose limitation," as well as in the absence of an appropriate legal basis, in violation of Arts. 5, par. 1, lett. a) and b), and 6, since the aforementioned conduct falls outside the legal framework provided by Art. 114 of the Code (cf. Art. 88 of the Regulation).

4.2.1. The collection of personal data relating to the employee's private life.

Considering that, especially in cases of remote work, the boundary between the work and professional sphere and the strictly private sphere cannot always be clearly delineated, the complete nullification of any expectation of privacy of the individual in the work context cannot be foreseen. This is why the European Court of Human Rights has confirmed over time that the protection of private life (Art. 8 of the European Convention on Human Rights) extends to the work environment, where the personality and relationships of the working individual are expressed (see Judgments of the European Court of Human Rights *Niemietz v. Germany*, 16.12.1992 (app. no. 13710/88), especially par. 29; *Copland v. UK*, 03.04.2007 (app. no. 62617/00), especially par. 41; *Bărbulescu v. Romania [GC]*, 5.9.2017 (app. no. 61496/08), especially pars. 70-73 and 80; *Antović and Mirković v. Montenegro*, 28.11.2017 (app. no. 70838/13), especially pars. 41-42).

Therefore, the processing of data carried out through information technologies, within the employment relationship, must comply with the respect for the rights and fundamental freedoms as well as the dignity of the individual, in protection of workers and third parties (see Recommendation CM/Rec(2015)5 of the Committee of Ministers to Member States on the processing of personal data in the employment context, especially point 3).

Regarding the specific case, according to what emerges from the documents and confirmed by the data controller, it appears that the original characteristics of the Time Relax application were not proportionate to the purpose pursued by the Company (cf. recital 49 and Art. 6, par. 1, lett. e) of the Regulation), leading to a systematic collection of unnecessary information due to the peculiarities of the performance of work in remote mode, also in contrast with the prohibition for the employer to collect irrelevant data as provided by Art. 113 of the Code (with reference to Art. 8 of Law 20 May 1970, no. 300, and Art. 10 of Legislative Decree 10 September 2003, no. 276) and, therefore, with the same principle of "lawfulness, fairness, and transparency" as per Art. 5, par. 1, lett. a), of the Regulation.

The need to ensure that the work performance of employees in remote mode is actually carried out at the locations indicated in the reference agreement cannot, in fact, justify any form of interference in private life - as occurred in this case, collecting and processing information regarding the specific location where the individual was temporarily located - leading to personal data processing that falls within the scope of application of Art. 113 of the Code, in violation of Arts. 5, par. 1, lett. a), 6, and 88 of the Regulation and 113 of the Code (regarding the risks for the individuals concerned and the

responsibilities of the controller regarding the acquisition of information pertaining to the private sphere of employees, see provision of 15 April 2021 no. 137 pending publication; but also see, provision of 26 March 2020, no. 64 - "Distance Learning: Initial Guidelines" -, web doc no. 9300784, par. 5 and, already, Guidelines on email and internet, provision 1 March 2007, no. 13, web doc no. 1387522 in particular, point 5.2., lett. a), whose principles can still be considered valid).

In this regard, it should be added that the need to ensure confidentiality and security of processed data even in the case of remote work - also invoked in this case by the Company, which referred, in particular, to the risk of mixed environments during work calls and access to open wi-fi networks (cf. note of XX) - must be pursued primarily by providing specific instructions to authorized employees (Arts. 4, par. 10, 29, 32 par. 4, of the Regulation; see Art. 2-quaterdecies of the Code), also considering the technical and organizational measures adopted in general to protect the data, and not instead through the geolocation of personnel working remotely.

This is also in light of the principle established by Art. 115 of the Code, according to which even within the framework of the remote work relationship, the employer is required to ensure respect for the worker's personality and moral freedom.

In any case, the processing in question, leading to a collection of data that was neither limited nor relevant to the purpose of managing the employment relationship in remote mode, was also in contrast with the principle of

"data minimization," in violation of Article 5, paragraph 1, letter c), of the Regulation.

It should also be highlighted that the Company has not ensured, either at the time of determining the means of processing or during the processing itself, that the protection of personal data was integrated into the processing from the design stage and by default, "incorporating into the processing the measures and guarantees adequate to ensure the effectiveness of the principles of data protection, the rights and freedoms of the data subjects" and ensuring that "[only the processing strictly necessary for achieving the specific and lawful purpose was carried out by default]" (cf. "Guidelines 4/2019 on Article 25 - Data Protection by Design and by Default," adopted by the European Data Protection Board on October 20, 2020). It must therefore be concluded that the processing in question has also been carried out in violation of the principles of data protection "by design" and "by default," in violation of Article 25 of the Regulation.

4.2.2. The inadequacy of information regarding the processing.

Although certain informational elements related to the processing operations of employee geolocation in agile mode can be found in the corporate documentation submitted by the Company during the investigation, it is noted that such documents do not contain all the essential informational elements required by Article 13 of the Regulation. Such documents, such as the Company's "Regulation on Agile Work," were indeed drafted to fulfill obligations different from those arising from data protection regulations and cannot therefore replace the information that the data controller must provide to the data subjects before commencing the processing, regarding the essential characteristics of the processing itself and in order to allow them to be fully aware of the types of processing operations that could be carried out, also drawing, within a framework of lawfulness, on the data collected during the work activity (cf. in this regard, among many others, the provision of April 11, 2024, no. 234, web document no. 10013356, regarding the use of surveillance systems, as well as the provision of May 13, 2021, no. 190, web document no. 9669974; see also the judgments of the European Court of Human Rights of September 5, 2017 - Application no. 61496/08 - Case Barbulescu v. Romania, specifically paragraphs 133 and 140, and the judgment of January 9, 2018 - Applications no. 1874/13 and 8567/13 - Case López Ribalda and others v. Spain, specifically paragraph 115). This has therefore occurred in violation of Articles 5, paragraph 1, letter a), and 13 of the Regulation.

4.2.3. The failure to conduct a data protection impact assessment.

Furthermore, since there is no evidence in the documents of the conduct of a data protection impact assessment regarding the processing of data related to the geolocation of employees in agile mode,

the following is highlighted.

According to Article 35 of the Regulation, “when a type of processing, particularly when it involves the use of new technologies, considering the nature, scope, context, and purposes of the processing, may present a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to processing, an assessment of the impact of the intended processing operations on the protection of personal data.”

In implementation of the principle of “accountability” (cf. Article 5, paragraph 2, and Article 24 of the Regulation), it is the responsibility of the data controller to assess whether the processing operations they intend to carry out may present a high risk to the rights and freedoms of natural persons - due to the technologies used and considering the nature, scope, context, and purposes pursued - which necessitates a prior data protection impact assessment (cf. recital 90 of the Regulation).

With more specific reference to the processing of personal data carried out by the Company, the processing of data collected through the satellite localization system involves specific risks to the rights and freedoms of the data subjects in the work context (Article 35 of the Regulation). This is in consideration of the particular “vulnerability” of the data subjects in the work context (cf. recital 75 and Article 88 of the Regulation and the “Guidelines on Data Protection Impact Assessments and the criteria for determining whether processing ‘may present a high risk’ under Regulation 2016/679,” WP 248 of April 4, 2017, which, among the categories of vulnerable data subjects, expressly mentions “employees”), as well as the fact that in this area the use of systems that may also indirectly involve “systematic monitoring,” understood as “processing used to observe, monitor, or control data subjects, including data collected through networks” (cf. criterion no. 3 indicated in the Guidelines, cited, but also see criteria 4 and 7), may present risks - as emerged in this case - in terms of monitoring employee activity (cf. Articles 35 and 88, paragraph 2, of the Regulation; see also provision of October 11, 2018, no. 467, web document no. 9058979, annex no. 1, which expressly mentions “processing carried out in the context of the employment relationship through technological systems [...] from which the possibility of remote monitoring of employee activity arises”; see also, among others, provision no. 234 of June 10, 2021, web document no. 9675440).

For these reasons, in highlighting the occurrence, in the specific case, of the prerequisites for conducting an impact assessment on the protection of personal data, a circumstance that would have allowed the data controller to become aware of the specific and significant risks to the rights and freedoms of the affected individuals involved, to mitigate them by orienting its choices in this regard in a more informed and, if necessary, different manner, it must be concluded that the Company has also acted in violation of Article 35 of the Regulation.

For all the reasons stated above, it must therefore be considered that the processing, by the Company through the Time Relax application, of data relating to the geographical location of the employees, being directly aimed at pursuing a purpose not permitted by the sector regulations and related to the verification of a particular aspect of the workers' activity, namely that concerning compliance with the agreement regarding the location of the performance of work in smart working mode, has been carried out, both in the cases referred to in letter a) and in those referred to in letter b) of paragraph 4.1 of this provision, in a manner not compliant with the principles of "lawfulness, fairness and transparency," "purpose limitation," "data minimization," "data protection by design," and "data protection by default," as well as in the absence of an appropriate lawful basis, in violation of Articles 5, paragraph 1, letters a), b) and c), 6, 13, 25, 35, and 88 of the Regulation and Article 113 of the Code.

4.3. The processing of data relating to the geolocation of the complainant for disciplinary purposes. Regarding the use of data relating to the geographical location of the complainant for disciplinary purposes, noting that, based on what has been stated by the Company, the disciplinary procedure is currently "suspended," the following is noted.

Since 2015, the current regulatory framework allows that data collected pursuant to Article 4, paragraphs 1 and 2, of Law No. 300 of May 20, 1970, may be used by the employer for further processing necessary for the management of the employment relationship, only if such data has been

lawfully collected in pursuit of the purposes provided for in paragraphs 1 and 2 of Article 4 of Law No. 300 of May 20, 1970, as well as in compliance with the conditions and limits established by that provision and the data protection regulations, providing employees with all information on the further processing. In other words, the employer may use the personal data of workers for further purposes related to the management of the relationship (see the example contained in Article 88 of the Regulation) to the extent that the original collection was lawfully carried out, taking into account the main purpose originally pursued, and in compliance with the general principles of data protection. This is also in light of the provision of Article 2-decies of the Code, which provides, in principle, for the unusability of personal data collected and processed in violation of the relevant regulations on the processing of personal data (this principle has been confirmed in numerous provisions of the Authority and in general guidance documents; see, among many, FAQ No. 13 on oncological oblivion, web doc No. 10044898, and FAQ No. 12 available at <https://www.garanteprivacy.it/temi/coronavirus/faq#scuola>).

The data controller may, in fact, use only the personal data lawfully collected, in the presence of an appropriate legal basis, having previously "satisfied all the requirements for the lawfulness of the original processing" (see Recital No. 50 of the Regulation) and, therefore, to the extent that the original collection was carried out within an overall framework of lawfulness, also taking into account "the context in which the personal data were collected, particularly with regard to the relationship between the data subject and the data controller," "the possible consequences of the further processing for the data subjects," as well as "the existence of adequate safeguards" (see Article 6, paragraph 4, of the Regulation).

These principles have been reiterated by the Authority in numerous provisions, albeit with regard to the use of different technologies in the workplace (see Provision of April 11, 2024, No. 234, web doc No. 10013356, regarding video surveillance; Provision of May 13, 2021, No. 190, web doc No. 9669974, regarding the collection of employees' internet browsing data; Provision of October 28, 2021, No. 384, web doc No. 9722661, regarding the collection of data from call center operators).

Regarding the specific case, although the Company has recently stated that the data acquired through the Time Relax application has not been used to assert specific disciplinary responsibilities of the complainant (see note of XX), it should be noted that both the report prepared by the organizational unit responsible for conducting the control and the subsequent note of disciplinary contestation account for the aforementioned use for disciplinary purposes (see Report on Agile Work Control No. XX of XX and note of disciplinary contestation of the charge, of XX).

Indeed, although during the targeted control against the complainant on XX, she stated, when contacted by phone, "that she was not in the location she had originally communicated" (see note of XX), the competent office nonetheless requested the employee to perform a clock-in and a clock-out so that the Time Relax application would record the information regarding her location.

geographical. Such personal data were, therefore, acquired by the Administration and used as the basis for initiating the disciplinary procedure, given that in the notice of contestation of the charge, dated XX, it was expressly contested, among other things, the "discrepancy between the declared location and the geolocation verified by the Inspection Office during the checks." For these reasons, the circumstance that the disciplinary procedure was subsequently suspended cannot be deemed sufficient to exclude the responsibility of the data controller.

That said, considering that the data relating to the geographical location of the complainant were acquired by the Company through the Time Relax application to carry out direct checks on the geographical position in which the complainant was performing the work in agile mode – a treatment not permitted by the legal framework, which conflicts with both the regulations on the protection of personal data and the special provisions on agile work (see previous paragraphs of this provision) – it must be concluded that the further use of the aforementioned data for disciplinary purposes occurred in a manner that does not comply with the principles of "lawfulness, fairness, and transparency" and "purpose limitation" as well as in the absence of an adequate legal basis, in violation of Articles 5, paragraph 1, letters a) and b), and 6 of the Regulation, given that the aforementioned conduct falls outside the legal framework provided for by Article 114 of the Code (see Article 88 of the Regulation).

5. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – for which the truthfulness may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the act of initiating the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and it is noted that the processing by ARSAC through the Time Relax application of data relating to the geographical position of the majority of employees working in agile mode and the subsequent use of the same to initiate a disciplinary procedure against the complainant occurred in violation of Articles 5, paragraph 1, letters a), b), and c), 6, 13, 25, 35, and 88 of the Regulation and Article 113 of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same treatment or treatments connected to each other), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to Articles 5, 6, 13, 25, 35, and 88 of the Regulation, as well as Article 113 of the Code, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects – given that the Company appears to have taken, in self-defense, the decision to deactivate the geolocation function of the Time Relax application as well as ordered the suspension of the disciplinary procedure against the complainant – the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

the processing involved about a hundred employees who were carrying out their work activities in agile mode for a significant period of time (Article 83, paragraph 2, letter a), of the Regulation); although the Company had erroneously believed it could carry out the aforementioned treatments also based on its own general administrative act and

of an agreement with the trade union representatives, the entity has nonetheless implemented monitoring aimed at controlling the activity of the worker not permitted by the applicable sector regulations (Article 83, paragraph 2, letter b), of the Regulation);

**the processing, although it did not involve data belonging to the special categories referred to in Article 9 of the Regulation, concerned information that is nonetheless quite sensitive, relating to the

geographical location of workers in smart working mode, including the complainant herself, also resulting in an interference with their private sphere (cf. Article 83, paragraph 2, letter g), of the Regulation);**

it is believed that, in this case, the level of severity of the violation committed by the data controller is high (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60).

Having stated the above, it is believed that, for the purposes of quantifying the penalty, the following mitigating circumstances should be taken into account:

1. **the controller has offered sufficient cooperation with the Authority during the investigation, having, moreover, taken the self-protective decision to deactivate the geolocation function of the Time Relax application and also ordered the suspension of the disciplinary procedure against the complainant (Article 83, paragraph 2, letters c) and f), of the Regulation);**
2. **there are no relevant previous violations committed by ARSAC (Article 83, paragraph 2, letter e), of the Regulation);**
3. **in this case, the choice to use the Time Relax application was initially made following consultation with the Data Protection Officer of the Company (Article 83, paragraph 2, letter k), of the Regulation).**

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary penalty at €50,000.00 (fifty thousand/00) for the violation of Articles 5, 6, 13, 25, 35, and 88 of the Regulation, as well as Article 113 of the Code, as an administrative monetary penalty deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed. This is considering that the data processing in question, which involved a significant number of data subjects, was carried out over a considerable period, resulting in a form of monitoring of work activity performed in smart working mode not permitted by the applicable sector regulations; this even through specific targeted control procedures on an individual basis aimed at ascertaining the exact geographical location of the worker, with consequent interferences in their private sphere.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE STATED, THE Garante declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by ARSAC for violation of Articles 5, 6, 13, 25, 35, and 88 of the Regulation as well as Article 113 of the Code, in the terms set out in the reasoning;

ORDERS the Regional Company for the Development of Calabrian Agriculture, represented by the legal representative pro tempore, with registered office at Viale Trieste, 93/95 - 87100 Cosenza (CS), Tax Code 03268540782, to pay the sum of €50,000.00 (fifty thousand/00) as an administrative monetary penalty for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed penalty;

ORDERS the aforementioned Regional Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €50,000.00 (fifty thousand/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- **pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante

Regulation No. 1/2019, the publication of the injunction order on the Garante's website;**

- **pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the website of the Authority;**

- **pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.**

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei